# Brazoria County District Court

Cause No. 2025-CV-0001

David May, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Plaintiff's Original Petition

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| **Filed:** | October 27, 2025 |
| **Plaintiff's counsel:** | Carlos Fox, Carter & Smith Injury Lawyers |

PARTIES

Plaintiff David May is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is the automobile insurance carrier that issued the policy under which Plaintiff seeks benefits, and which may be served through its registered agent in accordance with Texas law.

FACTS

On November 20, 2023, Plaintiff was lawfully operating a motor vehicle in Pearland while making a left turn at an intersection. While Plaintiff's vehicle was in the process of completing that turn, another vehicle struck it with force, causing the impact that gives rise to this action. Plaintiff had the right to complete the turn and had taken reasonable steps to ensure the way was clear before proceeding. Following the collision, Plaintiff reported the loss to Defendant and submitted the information required under the policy. Defendant has not paid the benefits owed under the policy in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

The at-fault driver failed to keep a proper lookout, failed to yield the right of way, and failed to control the speed of the vehicle so as to avoid the collision. Those failures were a proximate cause of the accident and of Plaintiff's injuries. Defendant is obligated under the terms of its policy to pay covered benefits and to handle Plaintiff's claim in good faith and with reasonable promptness, and Defendant has failed to do so.

DAMAGES

As a direct result of the collision, Plaintiff suffered whiplash, including neck pain, stiffness, headaches, and reduced range of motion. Plaintiff has incurred medical expenses for examination and treatment, has missed time from work, and continues to experience pain and limitations in daily activities. Plaintiff seeks recovery of all benefits due under the policy, together with damages for the injuries described, in an amount of $43,000.00, plus interest, costs of court, and such other relief as the Court deems just.